IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU

CA (CAA) No. 28 / BB / 2018
U/S 230 to 232 of the
Companies Act, 2013

In the matter of:

AIG DATA SERVICES PRIVATE LIMITED
5th Floor, Crescent 4, Prestige Shantiniketan,
Whitefield, Bengaluru – 560 048

...Applicant Company No. 1 /
(Transferor Company)

AND

AIG ANALYTICS & SERVICES PRIVATE LIMITED
5th Floor, Crescent 4, Prestige Shantiniketan,
Whitefield,Bengaluru – 560 048
Represented by its Company Secretary
and Authorised Representative,
Ms. Veena Kannan

... Applicant Company No. 2 /
(Transferee Company)

CORAM: Hon'ble Shri Rajeswara Rao Vittnala, Member (J)

Counsel for the Applicant : Shri C.R.Muralidaharan, Senior Counsel

Counsel for the Respondent : None

Date of Order: 10th May, 2018

Per: Hon'ble Shri Rajeswara Rao Vittnala, Member (J)

ORDER

1. The joint Company Application bearing CA (CAA) No. 28 / BB / 2018 is filed by Aig Data Services Private Limited and another ,U/S 230 to 232 of the Companies Act, 2013 by inter alia seeking to dispense with convening the meeting of the Equity Shareholders of the Applicant Company No. 1/ Transferor Company for the purpose of considering the proposed Scheme of Amalgamation and Arrangement; consequently permitted the Company to dispensing with publication of the notice of meeting in the newspapers etc.

2. Brief facts of case, which are relevant to the issue in the instant case, are submitted as under:

a) The Applicant Company No. 1/ Transferor Company was incorporated on November 22, 2013 as a private company limited by shares with the Registrar of Companies, Karnataka, Bangalore, under the name "AIG DATA SERVICES PRIVATE LIMITED" as evidenced by the Certificate of Incorporation issued by the Registrar of Companies, Karnataka, Bangalore.

b) The main objects of Applicant Company No. 1/ Transferor Company are *inter alia* to carry on the business of providing information technology enabled services of all description in connection with any industry including electronic data processing and data analysis services, data management services, information technology support and services, technology development services, business management systems and services, enterprise integration architecture support services, system integration services, information management and analytics services, data and analytics platform support services, back office operation services, remote data entry services, software development and testing services, research and development services and other related services in relation to any industry to any person including to the parent and group entities of the Company.

c) The authorized share capital of the Applicant Company No. 1/ Transferor Company is Rs. 60,50,00,000/- (Rupees Sixty Crores and Fifty Lakhs Only) divided into 6,05,00,000 (Six Crores and Five Lakhs) Equity Shares of Rs.10/- (Rupees Ten Only) each. The present issued, subscribed and paid-up share capital of the Applicant Company No. 1/ Transferor Company is Rs. 1,26,040/- (Rupees One Lakh Twenty Six Thousand and Forty Only) divided into 12,604 (Twelve Thousand Six Hundred and Four) Equity Shares of Rs. 10/- (Rupees Ten Only) each, as on April 25, 2018.

d) The Board of Directors of the Applicant Company No. 1/ Transferor Company, at its meeting held on April 25, 2018, have accorded their consent and approval to the proposed Scheme of Amalgamation and Arrangement, by virtue of which the Applicant Company No. 1/ Transferor Company is proposed to be merged and amalgamated with AIG ANALYTICS & SERVICES PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having its registered office at 5th Floor, Crescent 4, Prestige Shantiniketan, Whitefield, Bengaluru – 560 048, Karnataka, India ("**Applicant Company No. 2 / Transferee Company**"), subject to sanction and confirmation of this Hon'ble Tribunal, within whose jurisdiction the registered offices of both the Applicant Company No. 1/ Transferor Company and the Applicant Company No. 2/ Transferee Company are situated.

e) The Applicant Company No. 2/ Transferee Company was originally incorporated on October 27, 2009 as a private company limited by shares under the name "CHARTIS INSURANCE SERVICES PRIVATE LIMITED", with its registered office situated in the State of Maharashtra, as evidenced by the Certificate of Incorporation issued by the Registrar of Companies, Maharashtra, Mumbai. The Applicant Company No. 2/ Transferee Company had subsequently altered the provisions of its Memorandum of Association with respect to the place of its Registered Office by changing it from the State of Maharashtra to the State of Karnataka and the said alteration was confirmed by an order of the Regional Director (Western Region), Ministry of Corporate Affairs, Mumbai, dated August 05, 2014; and a Certificate of Registration of the Regional Director Order for Change of State confirming transfer of the Registered Office of the Applicant Company No. 2/ Transferee Company to the State of Karnataka, with Corporate Identity No. U74990KA2009PTC076432, was issued by the Registrar of Companies, Karnataka, Bangalore on September 18, 2014. The name of the Applicant Company No. 2/ Transferee Company was changed from "CHARTIS INSURANCE SERVICES PRIVATE LIMITED" to "AIG ANALYTICS & SERVICES PRIVATE LIMITED" and consequently, a Certificate of Incorporation pursuant to change of name was issued by the Registrar of Companies, Karnataka, Bangalore, on March 25, 2015.

f) The main objects of Applicant Company No. 2/ Transferee Company are *inter alia* to carry on the business of offering sophisticated risk management advisory and consulting services to companies in the insurance, reinsurance and financial services industries, including but not limited to, catastrophe risk analysis, property risk analysis, terrorism risk analysis, dynamic financial analysis, actuarial analysis, rating agency analysis and regulatory and tax planning for all lines of business.

g) The authorized share capital of the Applicant Company No. 2/ Transferee Company is Rs. 82,50,00,000/- (Rupees Eighty Two Crores and Fifty Lakhs Only) divided into 8,25,00,000 (Eight Crores and Twenty Five Lakhs) Equity Shares of Rs.10/- (Rupees Ten Only) each. The present issued, subscribed and paid-up share capital of the Applicant Company No. 2/ Transferee Company is Rs. 42,52,09,480/-.(Rupees Forty Two Crores Fifty Two Lakhs Nine Thousand Four Hundred and Eighty Only) divided into 4,25,20,948 (Four Crores Twenty Five Lakhs Twenty Thousand Nine Hundred and Forty Eight) Equity Shares of Rs. 10/- (Rupees Ten Only) each, as on April 20, 2018.

h) The Board of Directors of the Applicant Company No. 2/ Transferee Company, at its meeting held on April 19, 2018, have accorded their consent and approval to the proposed Scheme of Amalgamation and Arrangement, by virtue of which AIG DATA SERVICES PRIVATE LIMITED, a company incorporated under the provisions of the Companies

Act, 1956 and having its registered office at 5th Floor, Crescent 4, Prestige Shantiniketan, Whitefield, Bengaluru – 560 048,Karnataka, India("**Applicant Company No. 1 / Transferor Company**") is proposed to be merged and amalgamated with the Applicant Company No. 2/ Transferee Company, subject to sanction and confirmation of this Hon'ble Tribunal, within whose jurisdiction the registered offices of both the Applicant Company No. 2/ Transferee Company and the Applicant Company No. 1/ Transferor Company are situated.

3. The Applicant Company No. 1/ Transferor Company has 2 (Two) Equity Shareholders. The Chartered Accountant's Certificate certifying the shareholding pattern and setting out the Equity Shareholders holding the Equity Shares of the Applicant Company No. 1/ Transferor Company along with their respective shareholding as on April 25, 2018, is filed along with the application. . Both the Equity Shareholders of the Applicant Company No. 1/ Transferor Company have accorded their consent / no-objection to the Scheme and their respective affidavits have also been filed with the Application. It has no Secured Creditors or Unsecured Creditors as on April 25, 2018.

4. The Applicant Company No. 2/ Transferee Company has 2 (Two) Equity Shareholders. The Chartered Accountant's Certificate certifying the shareholding pattern and setting out the Equity Shareholders holding the Equity Shares of the Applicant Company No. 2/ Transferee Company along with their respective shareholding as on April 20, 2018, is enclosed Both the Equity Shareholders of the Applicant Company No. 2/ Transferee Company have accorded their consent / no-objection to the Scheme and the Affidavits of Consent of both the Equity Shareholders of the Applicant Company No. 2/ Transferee Company are also filed.

5. The Applicant Company No. 2/ Transferee Company has no Secured Creditors as on April 20, 2018. The Applicant Company No. 2/ Transferee Company presently has only 1 (One) Unsecured Creditor. The Chartered Accountant's Certificate certifying that there are no secured creditors and further certifying the list of Unsecured Creditors of the Applicant Company No. 2/ Transferee Company as on April 20, 2018 and the particulars of the amounts due to them as on April 20, 2018, is produced. The sole Unsecured Creditor of the Applicant Company No. 2/ Transferee Company has accorded its consent / no-objection to the Scheme and the Affidavit of Consent of the said Unsecured Creditor of the Applicant Company No. 2 / Transferee Company is also filed.

6. The Board of Directors of the First Applicant/Transferor Company and second Applicant transferee Company have passed resolution as the Respective meetings held on 25th April 2018 by virtue of which AIG Data Services Private Limited, Transferor Company is proposed to get merged with second Applicant transferee Company in terms of the scheme of Amalgamation. The Board of Directors of the Applicant companies at their Respective meeting held on 19th April 2018 have respectively confirmed the contents of the scheme of Amalgamation and also by the shareholders of the Applicant's company.

7. Heard the Shri C.R.Muralidharan, Learned Senior Counsel for the applicant. The learned Senior Counsel, while pointing various averments made in the application, has further submitted that since the parties concerned have already given their respective affidavits by expressing their no objection to the instant Scheme, the applicants are entitled for dispensation of the meeting as sought for.

8. As stated that Equity shareholders of Applicant Company No. 2 has already given no objections to the scheme in question and similarly sole un-secured Creditors of Applicant No. 2 Company. The Applicants have also followed all provisions as mentioned under Section 230-232 of the Companies Act, 2013 and thus prima facie satisfies Tribunal by producing/disclosing material facts to the issue so as to consider the relief as prayed for. Therefore, no purpose would be served to order to conducting of meetings of those parties and the Applicants are entitled dispensation of the meetings as prayed for.

9. In view of the above facts and circumstances of the case, and, by exercising the powers conferred on this Tribunal, U/ S 230(9) of the Companies Act, 2013, the CA.(CAA)No.28/18 is disposed of with the following directions:

a) It hereby dispensed with convening the meetings of Equity Shareholders of Applicant Company Nos. 1 & 2 /Transferor/Transferee Companies, for the purpose of considering the proposed scheme of Amalgamation and Arrangement.

b) Similarly , dispensed with convening the meetings of sole un-secured Creditor of Applicant Company No. 2(Transferee Company;

c) And also dispensed with publication of notices of the above meetings.

d) Any party, who is aggrieved by this order, can approach the Tribunal, by way of filing miscellaneous Application by seeking appropriate direction(s)

(Rajeswara Rao Vittanala)
Member (J)

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